

FILE OF THE COUNCIL NO. _____

2025

AN ORDINANCE

LEVYING THE PROPERTY TAX MILLAGE FOR THE YEAR 2026.

WHEREAS, in May 2022, Lackawanna County appointed Tyler Technologies to provide real property reassessment services for real property located in Lackawanna County;

WHEREAS, on November 14, 2025, the Lackawanna County Office of Assessment and Appeal provided the City with a true copy of the revised assessment roll for the City of Scranton ("City") for 2026 budgeting purposes;

WHEREAS, the revised assessment taxable roll for the City for 2026 budgeting purposes is \$5,857,828,107;

WHEREAS, 53 Pa.C.S.A. §8823(b) requires that a taxing district levying its real estate taxes on the revised assessment roll for the first time shall reduce each tax rate levied by the taxing district, if necessary, so that the total amount of taxes levied for that year against the properties contained in the real estate tax duplicate for that rate does not exceed the total amount it levied on the properties in the preceding year;

WHEREAS, the City is a taxing district located in Lackawanna County;

WHEREAS, in 2025 the City levied a split millage rate on land and buildings producing a total amount of taxes levied by the City in fiscal year 2025 of \$36,365,628.37;

WHEREAS, the City desires to convert to a single millage rate on both land and buildings for the fiscal year 2026;

WHEREAS, to comply with Pennsylvania statutes, the City will levy a single millage rate in fiscal year 2026 that does not exceed the total amount of real estate taxes levied by the City in fiscal year 2025.

NOW, THEREFORE, it is hereby enacted and ordained as follows:

SECTION 1. Be it ordained by the Council of the City of Scranton, that Section 1 of File of Council No. 100, 1976 shall be amended to read as follows:

"The Council of the City of Scranton ordains that for the purpose of defraying the expenses of the City of Scranton for the fiscal year commencing on the first day of January, 2026, and certain other deficiencies prior thereto, a tax is hereby levied on all real, personal and mixed property within the limits of the City of Scranton, Pennsylvania taxable according to the laws of the Commonwealth of Pennsylvania as follows:

To provide for the payment of general expenses and to provide for the various

interest and sinking funds as required by law, there is hereby levied on each thousand dollars of valuation in the Scranton Twenty-Four Ward area for general and special purposes a property tax millage rate of 6.2080395167 mills.”

SECTION 2. Be it ordained further that the dedicated millage for debt service is eliminated and a dedicated percentage of revenues is imbedded thereby meeting the intent of a segregated stream of revenues assigned to debt service. To address the continued dedication of real estate tax revenue herein , the Single Tax Office will be notified, and this legislation will certify, that 25% of real estate tax revenue on a current year basis will be remitted to the City’s Single Point Paying Agent to meet the budgeted debt service requirement for that fiscal year.

SECTION 3. This Ordinance shall become effective January 1, 2026.

SECTION 4. In all other respects, File of the Council No. 100, 1976 shall remain in full force and effect.

SECTION 5. If any section, clause, provision or portion of this Ordinance shall be held invalid or unconstitutional by any Court of competent jurisdiction, such decision shall not affect any other section, clause, provision or portion of this ordinance so long as it remains legally enforceable minus the invalid portion. The City reserves the right to amend this ordinance or any portion thereof from time to time as it shall deem advisable in the best interests of the promotion of the purposes and intent of this Ordinance and the effective administration thereof.

SECTION 6. This Ordinance is enacted by the Council of the City of Scranton under the authority of the Act of the Legislature, April 13, 1972, Act No. 62, known as the "Home Rule Charter and Optional Plans Law", and any other applicable law arising under the laws of the State of Pennsylvania.



DEPARTMENT OF LAW

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MEMORANDUM FOR CITY COUNCIL LEGISLATION

Is this a Resolution or Ordinance?	Ordinance
Title of Legislation	LEVYING THE PROPERTY TAX MILLAGE FOR THE YEAR 2026.
Department(s)	Business Administration
Legislation Description	• Under the 2026 Budget Proposal, there is no increase in any City tax rates or refuse fee for 2026. • Lackawanna County recently completed a reassessment of real properties located in Lackawanna County. • State law requires the City to levy a real estate millage rate in 2026 that does not exceed the total amount it levied on properties in 2025. • To provide for a simple calculation of the City's real estate tax calculations and to provide for a clearer comparison of the City's real estate tax millage rate with other municipal entities, the City is converting to a single millage rate in 2026. • The City's 2026 single millage tax rate for general and special purposes of 6.2080395167 mills complies with the aforementioned state law. • The City's previously enacted Earned Income Tax, Payroll Preparation Tax, Local Services Tax, and Realty Transfer Tax and Refuse Fee ordinances explicitly authorize the City to continue levying those taxes at the same rate in future years, so no legislation is needed for those taxes this year.
Financial Impact	See the 2026 Budget for the financial impact of the taxes and refuse fee themselves.
Other Notes	N/A

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OFFICE OF CITY
COUNCIL/CITY CLERK